

1.

a. Is there any reason why Engr. Sean would not register his patentable invention to the IPO (Intellectual Property Office)?

Yes. One reason is that he may want to keep the invention secret first.

If he files a patent application, the invention will be disclosed in the patent process. So if he does not want others to know the details yet, he may choose not to register it.

But under RA 8293, the inventor must file and get the patent granted in order to enjoy patent protection.

b. What is the disadvantage of not registering the invention of Engr. Sean?

The disadvantage is that he will have no patent protection.

This means other people may copy, use, or sell the invention, and he cannot easily stop them.

Also, under RA 8293, the Philippines follows the first-to-file rule, so if he does not file first, another person might file the same invention and get the patent instead.

2.

a. Can ABC University restrain Andrei from using the system he developed so that XYZ University cannot use it? How?

Yes, but only if the system was created as part of his regular duties in ABC University.

Under RA 8293, Sec. 178.3, if a work is created by an employee in the course of employment and as part of his regular duties, the copyright belongs to the employer.

Also, under Sec. 172.1, a computer program is protected by copyright.

But under Sec. 175, the idea, system, or method itself is not protected only the actual expression or code.

So ABC University may stop Andrei from copying, reproducing, or giving the program/source code to XYZ University.

b. Can the employer demand as a matter of right the source code of the system developed by his programmer-employee? How?

Yes, if the program was made as part of the employee's regular work.

Since the employer owns the copyright under RA 8293, Sec. 178.3, the employer may demand the source code as part of the work product.

But if the program was created outside his regular duties, then the employee may keep ownership unless there is an agreement saying otherwise.

c. If the employee was able to develop or design Patentable inventions during the course of his employment, who shall own the Patent? How?

It depends on the situation.

Under RA 8293, if the invention was made by the employee as part of his regular duties, the employer owns the patent, unless there is an agreement to the contrary.

If the invention was not part of his regular duties, then the employee/inventor keeps the right to the patent.

So the rule depends on whether inventing was part of his job.

d. Can the lawful owner of the computer program installer reproduce a copy? how?

Yes, but only in limited cases allowed by law.

Under RA 8293, the lawful owner of a computer program may make a backup copy or reproduce it only when necessary for lawful use or archival purposes.

He cannot reproduce it for:

- sale,
- distribution, or
- unauthorized sharing.

e. Is the rules of copyright ownership regarding commissioned work the same as with patent? how?

No, they are not the same.

For copyright, under RA 8293, Sec. 178.4, if a work is commissioned, the person who commissioned it owns the physical work, but the copyright still belongs to the creator, unless there is a written agreement saying otherwise.

For patents, the rule is different because the patent may belong to the employer or commissioner, depending on the employment or commission arrangement.

So, copyright and patent have different ownership rules.